

PUBLIC SAFETY

Despite Successes, ALPR Tech Still Raises Privacy Concerns

Law enforcement officials in many cities that have deployed automatic license plate recognition cameras say they help solve crimes, but critics are skeptical and raise concerns about privacy.

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The deployment of [automatic license plate recognition](#) (ALPR) cameras on city roadways is one way police say can help fight crime amid staffing shortages, and some jurisdictions are reporting good results, not only in locating stolen vehicles but in solving other crimes as well.

But does that alone make ALPRs a viable tool that not only helps law enforcement fight crime, but does so without harm to the public? There are concerns about the installation of ALPRs, including cost and [privacy](#).

Houston has 3,800 ALPR cameras strategically located throughout the city and isn't apologetic about it. Houston police say the cameras have helped them solve several shootings recently, including that of rapper BTB Savage.

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"The days of chasing criminals the old-fashioned way are over. We're not on horses anymore," Lt. Mike Santos, sheriff's deputy, [told the Houston Chronicle](#) last month after the East Aldine Management District said it was planning on adding 60 new cameras at a cost of \$1 million. "If we can use technology to our benefit, then let's do it."

And early results in San Francisco and Chicago have affirmed the value of the cameras, at least from a law enforcement perspective.

But not everybody is on board. In Chicago, where ALPRs are being credited with helping solve crimes, including a murder, Illinois State Police and legislators are facing a lawsuit that claims the cameras on area expressways violate privacy protections in the constitution.

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San Francisco Mayor London Breed also proclaimed the city's 100 cameras to be successful early on in their deployment and said that a dip in violent crimes of 13 percent and a 33 percent decline in property crimes proves it. The Electronic Frontier Foundation is pushing back, however. Saira Hussain, senior staff attorney from that group, recently told a local radio station that studies have shown that the license

plate readers do not have a discernable effect on solving crime.

“We should not just merely say, ‘Well, the technology exists, so we should just use it,’” Hussain told [KQED](#).

Jonathan Hofer, a research assistant at the Independent Institute, a non-partisan, nonprofit public-policy research organization, said ALPRs “may” represent an invasion of privacy.

Just taking a photograph of a license plate would not be considered an invasion of privacy. But when you add into the equation the collection of data, it changes the game.

“Unlike consumer cameras, ALPRs log and retain other information, such as time and place,” Hofer wrote in an email to *Emergency Management*. “Some ALPRs log other information, such as the make and model of the car, and can deduce travel direction and speed. Because of this extra data collection, ALPRs ‘may’ be a privacy invasion.”

The ALPRs, it is argued, by deducing travel direction and speed can also deduce and calculate where individuals go on a daily basis.

The government is not allowed to put a GPS on your car without a warrant and cannot retrace your geographic steps with data, including from cellphone records. So it stands to reason that if you have enough ALPRs in a network and use the network to locate a vehicle, that would be an invasion of privacy.

In other words, the ALPRs would be considered a privacy invasion when they amount to a pseudo-GPS device.

Hofer noted that when talking about the government’s police powers, extra care is required for civil liberties, and the standard for the government should be high given the possible sensitivity of the data.

“I think ALPRs come at a cost of privacy,” Hofer wrote. “Travel patterns are indeed sensitive. They are like fingerprints and they reveal intimate details of a person’s life.

Imagine a person going to an LGBTQ bar, a shooting range, a place of worship or a particular political rally, and the police are logging [their] car there.”

He said there have been cases of police using ALPRs to stalk people. “Recently, in California, and some other states, there has been a concern that police are sharing records of residents of other states where abortion is banned, and police are handing over data that is logging cars to abortion centers.”

He said there are immigration concerns as well. “California has sanctuary laws, but sometimes the ALPR data can make its way to immigration authorities.”

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